

Court No. - 39

Case :- CIVIL MISC REVIEW APPLICATION No. - 422 of 2022

Applicant :- Ashfaq Ansari

Opposite Party :- Mohammad Shafaq

Counsel for Applicant :- Avdhesh Chandra Nigam

Counsel for Opposite Party :- Balram Singh

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

Order on Delay Condonation Application:-

There is no objection to the delay condonation application.

The explanation for delay in filing the review application has been explained to the satisfaction of the Court.

The delay condonation application is allowed. The delay in filing the review application is hereby condoned.

Order on Review Application:-

The review application has been filed on the ground that the review applicant has not been impleaded in the writ petition and the order dated 20.06.2022 has been obtained behind the back of the review applicant, who is owner of the disputed property namely House No.116/56(4) Sayyad Nagar, Kanpur.

A perusal of the record indicates that a civil suit has been filed by the review applicant registered as Original Suit No.1038 of 2008 and another Suit No.15450 of 2008, are pending before the civil court. The petitioner herein/opposite party is claiming title to the property in question.

Noticing the above, that the dispute pertaining to the title to the property in question pending between the petitioner and the review applicant and the petitioner is in occupation of the house in question which is an undisputed fact, we find that the direction issued by us for compliance of the conditions of the Clause 4.4. of the U.P. Electricity Supply Code' 2005 for grant of electricity connection in the house in question on the application of the petitioner would save the interest of both the litigating parties.

No case is made out for review. The review application is, accordingly, **dismissed**.

Order Date :- 24.3.2023

Himanshu



HIGH COURT OF JUDICATURE AT ALLAHABAD

CIVIL MISC REVIEW APPLICATION No. - 422 of 2022

Ashfaq Ansari
.....Applicant(s)
Versus
Mohammad Shafaq
.....Opposite
Party(s)

Counsel for Applicant(s) :
Counsel for Opposite Party(s) :

Court No. - 3

**HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE VIKRAM D. CHAUHAN, J.**

Civil Misc. Correction Application No. 2 of 2023

Sri Balram Singh, learned counsel for opposite party is present.
The Original Suit No. “1038” and “15450” appearing in the second line of fifth paragraph of the order dated 24.3.2023 be deleted and replaced with “1036” and “1450” respectively.
The correction application is allowed accordingly.

April 17, 2026
VMA
(Vikram D. Chauhan,J.) (Saumitra Dayal Singh,J.)